

24STCV31765 24STCV31765

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BACKGROUND

This case is a lemon law matter.

On December 3, 2024, Plaintiff Maria Diaz filed a complaint against Defendant Toyota Motor Sales, USA, Inc. The complaint alleges five causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On July 7, 2026, Plaintiff filed a Motion to Compel Defendant's Further Discovery Responses.

On September 1, 2026, Defendant filed an opposition.

No reply has been filed.

TENTATIVE RULING

Plaintiff's Motion to Compel Further Discovery Responses is GRANTED. However, the scope of the requests has been narrowed, as set forth below.

Defendant must produce the requested documents, with the requests narrowed, within thirty (30) days. No sanctions are awarded.

LEGAL STANDARD

Under Code of Civil

Procedure section 2031.310, the Court may order a responding party to serve a further response to a request for production of documents when the Court finds that any of the following apply: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; (3) an objection in the response is without merit or too general.

A motion to compel further

response to requests for production “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish ‘good cause,’ the burden is on the moving party to show both: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (See *Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) If ‘good cause’ is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.)

Code of Civil Procedure

section 2031.310, subdivision (h) authorizes a mandatory issuance of sanctions against “any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

DISCUSSION

I.

Meet

and Confer

A motion to compel further

responses must be accompanied by a meet and confer declaration (See Code Civ. Proc., § 2031.310, subd. (b)(2).) Said declaration must demonstrate a “reasonable

and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

Here, the parties discussed Defendant’s discovery responses by a series of letters and emails. (See Xie Decl., Exhs. 4-7.) However, the parties did not meet in person, by telephone, or by videoconference. (See *ibid.*) Thus, the meet and confer requirement has not been satisfied. (See Code Civ. Proc., § 2031.310, subd. (b)(2); Code Civ. Proc., § 2016.040, subd. (a).) Despite this, the Court will still consider the merits of Plaintiff’s motion.

II.

Requests

for Production of Documents (“RPD”)

The Court finds there is good cause to compel Defendant’s to produce the requested documents. However, the scope of the requests will be narrowed.

Here, Plaintiff seeks to compel Defendant’s further responses and production of documents in response to RPDs Nos. 16-21, 29, 36, 38, 39, 50, 51-54, 56, and 58 (See Motion, p. 2:7-8.) Plaintiff contends further responses are necessary because the requested documents will: (1) provide more insight on the issues with her vehicle; (2) help determine Defendant’s knowledge of similar defects in other similar vehicles; (3) help her investigate and build up her case; (4) assist her expert witnesses in preparing their testimony; (5) explain Defendant’s procedure for handling customer complaints; and (6) better understand the contours of the applicable warranty. (See Motion, pp. 6:25-26, 8:7, 8:13-15; 8:23-28.)

Given the foregoing, Plaintiff has demonstrated good cause to compel Defendant’s further discovery responses. (See Code Civ. Proc., § 2031.310, subd. (b)(1).) The production of the requested documents (NHTSA documents, TREAD documents, internal documents regarding similar electrical defects in other vehicles, communications regarding other similar defects, database information about other similar defects, documents relating to fixing said defects, and internal policies and training documents regarding customer complaints, refund requests, and replacement requests) appear relevant

to this matter and will help Plaintiff better prepare for trial. (See *Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117; see also

Sep. Stmt. [illustrating which specific documents are requested].) The Court finds that Plaintiff has met her burden in establishing good cause. (See Code Civ. Proc., § 2031.310, subd. (b)(1).)

In opposition, Defendant contends that Plaintiff's requests are too broad because they seek documents related to defects beyond those exhibited by Plaintiff's vehicle. (See Opp'n, p. 4:21-27.) The Court agrees – Plaintiff stated that the only defect with her vehicle was that when using the advanced drive feature, a message will display that states, "Advanced drive unavailable. Vehicle system issue." (See Webber Decl. ¶ 13, Exh. B [refer to highlighted portions].) Given that this is the only defect Plaintiff claims she experienced, the Court does not find a basis to request documents for other unrelated defects. Therefore, the scope of Plaintiff's requests will be limited to advanced drive issues in other similar vehicles in place of the broader definition of "ELECTRICAL DEFECT" set forth in the requests. However, Defendant must still produce documents about any other defects/issues/concerns that were also identified in the repair history of Plaintiff's vehicle.

Other than the foregoing, Defendant's objections (i.e., Plaintiff's requests are compound, vague, and ambiguous) are not justified. Plaintiff's requests, and accompanying definitions, are sufficiently clear and straightforward. The Court does not find any ambiguity as to what is being requested, what sources the documents are being requested from, or who should produce said documents.

For these reasons, Defendant must produce responsive, non-privileged documents to the requests at issue narrowed to refer to advanced drive issues in other similar vehicles.

Lastly, given that Defendant was partially justified in objecting to Plaintiff's RPDs, the Court shall not impose monetary sanctions. (See Code Civ. Proc., § 2031.310, subd. (h).)

CONCLUSION

For the foregoing reasons, Plaintiff's Motion to Compel Further Discovery Responses is GRANTED. However, the scope of Defendant's responses has been narrowed, as set forth above.

Defendant must

produce the requested documents in response to the narrowed requests within thirty (30) days. No sanctions are awarded.